

SENATE BILL 1769

By Lamar

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 47, Chapter 18; Title 64; Title 65; Title
67 and Title 68, relative to utilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 65, Chapter 4, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Commission" means the Tennessee public utilities commission;

(2) "Senior citizen customer" means a customer of a utility who is sixty-five (65) years of age or older; and

(3) "Utility" means a public utility that provides electric, water, wastewater, or natural gas services.

(b) On and after January 1, 2027, a utility shall not increase the rate charged for electric, water, wastewater, or natural gas service the utility provides to a senior citizen customer who has provided notice to the utility through the age verification and notification process established by the commission by rule.

(c) The commission shall establish by rule an age verification and notification process through which a senior citizen customer may provide notice to the customer's utility that the customer is of age to qualify for the rate cap provided in subsection (b).

(d) No later than ninety (90) days after the effective date of the commission's final rule required by subsection (c), each utility shall provide written notice to each utility customer of the availability of the rate cap for senior citizen customers created by this

section. Such written notice may be provided by bill insert, separate mailing, or by electronic means for those customers who utilize electronic billing services.

(e) A utility that fails to comply with this section is subject to reasonable sanctions ordered by the commission as described in rule. The fees collected from civil penalties under this section must be remitted to the commission for enforcement of this section.

(f) The commission shall enforce this section and may promulgate rules necessary to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.